

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #14	CCRB Case #: 201605106	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/07/2016 6:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/7/2017	Precinct: 100		
Date/Time CV Reported Tue, 06/07/2016 6:50 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/13/2016 12:36 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Richard Hoda	5081	945823	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Alberto Jimenez	01984	935069	100 PCT
2. DT3 Bernadette Enchautegui	5100	925240	WARRSEC
3. SDS Frank Ventura	05237	900703	WARRSEC
4. POM Joseph Grillo	24567	945377	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Richard Hoda	Abuse: Detective Richard Hoda damaged § 87(2)(b) and § 87(2)(b)'s property.	A . Unsubstantiated
B . DT3 Richard Hoda	Abuse: Detective Richard Hoda entered § 87(2)(b) in Queens.	B . Substantiated

Case Summary

On June 7, 2016, § 87(2)(b) filed the following complaint by phone with IAB, generating original log number § 87(2)(g). On that same day, Sgt. Alberto Jimenez of the 100th Precinct called IAB to report the incident after speaking in person to § 87(2)(b). The CCRB received the complaint on June 13, 2016.

On June 7, 2016, at approximately 6:30 a.m., Detective Richard Hoda of Queens Warrants arrived at § 87(2)(b) in Queens. He was accompanied by other Queens Warrants officers. Det. Hoda had an arrest warrant for § 87(2)(b) showing that she lived on the 2nd floor of the address. He allegedly damaged the building's front door while making entry (**Allegation A**). After finding the § 87(2)(b) floor apartment vacant, Det. Hoda entered the 1st floor apartment (**Allegation B**). He allegedly made forced entry and damaged the door leading to the 1st floor apartment (**Allegation A**). § 87(2)(b) and § 87(2)(b) were not in the apartment at the time. Their § 87(2)(b) -old son, § 87(2)(b) was home alone. Det. Hoda spoke briefly to § 87(2)(b) who told him that § 87(2)(b) used to live upstairs but had moved out after a break-in. Det. Hoda left his phone number with § 87(2)(b) and asked him to get in touch if he saw § 87(2)(b). § 87(2)(b) returned home shortly after the officers left and called 911 to report the incident. Sgt. Alberto Jimenez of the 100th Precinct responded and completed a UF-49.

No video footage was obtained regarding this incident. § 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined the option of mediation.
- On October 5, 2016, the NYC Comptroller's office confirmed that no Notice of Claim has been filed regarding the incident (BR01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

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§ 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b) and § 87(2)(b) have no previous CCRB complaints (BR04; BR05).
- Det. Richard Hoda has been a member of the NYPD for eight years and has had one previous CCRB allegation which was not substantiated (see officer history). § 87(2)(g)

§ 87(2)(b)

Potential Issues

- On June 21, after speaking by phone to § 87(2)(b) the undersigned emailed him and asked him to send all photographs he possessed depicting the alleged damage caused to his apartment door and his building's front door. He did not send the photographs. He displayed the photographs on his cellphone during his interview at the CCRB on June 29, 2016. While at the CCRB, § 87(2)(b)

§ 87(2)(b) said he was emailing the photographs to the undersigned and appeared to do so. However, the undersigned never received any of the photographs from him. The undersigned left four voicemails for § 87(2)(b) between June 29 and August 16 asking him to send the photographs and get back in touch, but he never responded. On July 11, the undersigned called § 87(2)(b) and asked her to send the photographs. She said she had taken her own photographs of the damage, which she emailed to the undersigned (BR06-BR09). Her photographs were of a lower quality than those shown by § 87(2)(b). Ultimately the investigation was unable to obtain the photographs displayed by § 87(2)(b) during his CCRB interview.

Findings and Recommendations

- **Allegation A—Abuse of Authority: Detective Richard Hoda damaged § 87(2)(b) and § 87(2)(b)'s property.**

During his interview at the CCRB, § 87(2)(b) recounted that he arrived home to find that the front door to his building had been forced open (BR10). He displayed photographs on his cellphone showing a long plank of wood leaning against a wall in his building's vestibule. He said that the plank had been attached to the doorframe on the side where the lock was located, and that it must have been broken off when the door was forced open. He also showed a photograph of a hole in a wall of the vestibule, and explained that the hole was located at the point where the door's inner knob meets the wall when it is fully opened. He believed that the door was broken open with such force that it struck the wall and created the hole.

§ 87(2)(b) also recounted that the door to his apartment had been forced open and damaged. He also showed photographs of the apartment door at his CCRB interview. They showed that a piece of the front of the door had splintered off, that the lock cylinder was broken, and that the door had cracked around the cylinder. As previously discussed, § 87(2)(b) never provided these photographs to the investigation.

§ 87(2)(b) also stated that § 87(2)(b) and her girlfriend had lived on the 2nd floor of the location until they moved out approximately 3-4 weeks before the incident. He described the 2nd floor apartment as "trashed" and said that the door to the 2nd floor apartment did not have a knob and was always ajar.

§ 87(2)(b) provided four photographs of the alleged damage to the investigation. Photo #4 is shot from inside the vestibule looking out the front door, and shows a plank of wood leaning in the doorframe (BR09). The stretch of wall to the right of the doorframe is unfinished, and it appears possible that the plank of wood has been detached from that wall. Photos #1-#3 show the apartment door (BR06-BR08). They show a small piece of splintered wood near the lock on the front of the door which is still attached by a single screw. They also show that the metal plate around the deadbolt is bent, and they show a long, vertical crack in the door which runs above and below the metal plate.

At his CCRB interview, § 87(2)(b) recounted that he was in bed when he heard two loud bangs on the door of his apartment, followed by the voices of officers inside the apartment asking, "Is anyone home?" § 87(2)(b) also recounted that he told Det. Hoda that he had not seen § 87(2)(b) since she moved out of the 2nd floor apartment following a break-in. Once the officers left, he found that the door to the apartment was damaged and would not lock (BR11).

Sgt. Jimenez responded to the location immediately following the incident, and he prepared a UF-49 report, which notes that § 87(2)(b) claimed that officers had damaged the door, lock, and doorframe of the apartment door (BR12). The report does not mention any alleged damaged

to the front door. During his CCRB interview, Sgt. Jimenez recounted that the front door to the building was closed and locked when he arrived (BR13). He denied observing any damage to the front door, and said that § 87(2)(b) opened the door when he knocked. He also denied that either § 87(2)(b) or § 87(2)(b) ever complained to him of officers having damaged the front door, and denied seeing any holes in the walls of the vestibule. § 87(2)(b) told Sgt. Jimenez that the door to his apartment had been damaged. Sgt. Jimenez examined the apartment door and found that it was old and worn-out. However, the door could be closed and locked. Sgt. Jimenez also recounted that the door seemed to have been repaired at some time in the past. He described there being two square pieces or blocks of wood placed across the door above the handle on both the front and back of the door. He could not tell if the repairs appeared to have been made recently. Neither § 87(2)(b) nor § 87(2)(b) ever told Sgt. Jimenez that they had made repairs to the apartment door.

Sgt. Jimenez viewed the four photographs provided to the investigation by § 87(2)(b) Sgt. Jimenez denied seeing the plank of wood in the vestibule shown in Photo #4. After viewing the three photographs of the apartment door, Sgt. Jimenez said that the apartment door looked different in the photographs than it was when he examined it on the date of the incident. However, he could not recall specifically what looked different, except that he denied seeing the splintered piece of wood on the front of the door on the date of the incident.

Det. Hoda's memo book entry regarding the incident notes that the building appeared to be abandoned, and that the front door and apartment doors were not secured (BR14). At his CCRB interview, Det. Hoda denied that he made forced entry into the building or into the 1st floor apartment, and he denied that he or other officers caused any damage during the incident (BR15). He recounted that the building's front door was slightly ajar when he arrived, and that he merely gently pushed it open to enter. He also said the building appeared abandoned because it had broken windows, there were wooden boards placed in the windows inside the building, and the front door was open. He denied observing any damage to the front door. After searching the 2nd floor apartment, which was disheveled and appeared to have been used by squatters, Det. Hoda went to the apartment door on the 1st floor. He recounted seeing damage on the doorjamb near the lock, but could not describe the damage in any greater detail. After knocking on the door and announcing himself and receiving no response, Det. Hoda opened the door. He denied that he made forced entry and claimed that the apartment door was unlocked. During his conversation with § 87(2)(b) Det. Hoda learned that there had been a home invasion at the building about three weeks prior. Det. Hoda did not think that he shut the apartment door behind him when officers left the location. He believed that an officer closed the front door to the building upon leaving, but could not recall if it was also locked.

Det. Hoda viewed the four photographs provided by § 87(2)(b) He did not recall seeing the plank of wood leaning in the vestibule. Det. Hoda said that he did not recall the damage he observed to the apartment door being as severe as the damage depicted in the photographs. However, he could not state unequivocally that the damage depicted in the photographs was not the same as the damage he observed during the incident, as he could not recall exactly the extent of the damage he observed on scene.

Det. Enchautegui remained outside the building during the initial entry (BR16). She could not recall if the building's front door was ajar when she arrived. She eventually entered the building and went to the 2nd floor. She made no observations of the condition of the building's front door but did not recall seeing any physical damage to it. She could not recall which officer first entered the 1st floor apartment, and could not recall seeing any officer knock on the apartment door or

announce himself. She did not recall seeing any damage to the apartment door. When asked if officers made forced entry into the apartment, Det. Enchautegui said, “No, not to my knowledge.” She viewed the photographs of the alleged damage and said she did not recall seeing any of the damage shown on the apartment door. However, when asked if she was certain that the apartment door looked different during the incident than it did in the photographs, Det. Enchautegui said that she did not recall looking at the apartment door or seeing anything out of the ordinary. She also did not recall seeing a loose or leaning plank of wood in the vestibule.

Sgt. Ventura also remained outside the building during the initial entry, and he never personally entered the building (BR17). He could not recall if the building’s front door was ajar when he arrived, and he did not recall seeing any damage on the front door. He could not recall how Det. Hoda gained entry to the building and did not see if Det. Hoda made forced entry or if a civilian allowed him to enter. Once officers exited, they told Sgt. Ventura that there were negative results for the search for § 87(2)(b). They never told him how they gained entry to the 1st floor apartment or whether they forcibly entered it.

PO Grillo did not have a strong recollection of the incident, but knew he eventually entered the building and stood in the doorway of the 2nd floor apartment while officers searched inside (BR18). He also stood in the front doorway and on the stoop while officers entered the 1st floor apartment. He could not recall how officers gained entry to the building, and he did not see how officers made entry into the 1st floor apartment. He doubted that officers would have made forced entry, however, as his understanding was that doing so would be against protocol. He did not recall making any observations of damage on the front door or apartment door.

On August 30, 2016, the undersigned called § 87(2)(b) a realtor who began listing the residence for sale in August. He described the property as being in very poor condition, and noted that there were numerous broken windows (BR19). He recounted meeting with the 1st floor tenants in July or August when he brought them paperwork to notify them of the impending sale of the property. They told him that the 2nd floor apartment had been vacant for approximately six months after an incident in which officers kicked down the door and made an arrest. They did not tell him anything about a more recent break-in at the property. He described the building’s front door as being in “terrible shape” and said it looked like it had been “beat up so many times.” He placed a padlock on it when he began trying to sell the property. He also described the doors to both apartments as being heavily damaged, and said both appeared as if they had been forced open in the past. He could not say when this damage occurred.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore it is recommended that **Allegation A** be closed as **unsubstantiated**.

- **Allegation B—Abuse of Authority: Detective Richard Hoda entered § 87(2)(b) s apartment on the 1st Floor in Queens.**

It is undisputed that Det. Hoda entered § 87(2)(b) and § 87(2)(b) s apartment on the 1st floor of the location. It is also undisputed that the parole warrant for § 87(2)(b) issued on § 87(2)(b), stated that she resided in the 2nd floor apartment at the location (BR20). It is also undisputed that the apartment doors on each floor bore no markings to indicate that they are separate apartments, and that the property had multiple broken windows.

Det. Hoda testified that, upon arriving at the location, he observed broken windows on the 1st floor and found that the front door was slightly ajar. He could not see into the building because the windows were obscured by curtains and by wooden boards placed in the windows inside the building. Det. Hoda concluded that the building was abandoned. Upon entering, he saw a staircase leading to the 2nd floor, and could see that the door to the 2nd floor apartment was wide open. He went directly to the 2nd floor apartment. He described the 2nd floor as being disheveled, and recounted there being clothing strewn about the floor and more broken windows. It appeared to Det. Hoda that squatters, or what he called “drifters,” had been using the residence. He did not provide any additional reasons for believing that squatters had been living in the 2nd floor apartment.

Det. Hoda remained in the 2nd floor apartment for no more than five minutes before returning to the 1st floor. The 1st floor apartment door was closed. Det. Hoda knocked and announced himself for a short time, which he described as possibly a couple minutes. He heard no response. He found that the door was unlocked, so he opened it and entered the apartment. At the time he entered the 1st floor apartment, Det. Hoda believed that the entire building was abandoned, and that any individuals found inside did not belong there.

An arrest warrant founded on probable cause implicitly carries with it the limited authority to enter a dwelling in which the suspect lives when there is reason to believe the suspect is within. Payton v. New York, 445 U.S. 573 (1980) (BR21). In People v. Watkins, the Court used the physical condition of an apartment, and the subsequent conclusion that it was abandoned, in part to conclude that a warrantless entry to effect an arrest was justified. In that case, the defendant was arrested in a vacant apartment which had suffered severe fire and water damage, which was “uninhabitable,” and which was open to the public. People v. Watkins, 121 A.D.2d583 (1986) (BR22).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore it is recommended that
Allegation B be closed as **substantiated**.

Squad: 14

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date